

23CHCV03746 23CHCV03746

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Case Number: 23CHCV03746 Hearing Date: July 21, 2026 Dept: F49

Dept. F49

Date: 7/21/26

Case Name: Jorge Molina vs. Hyundai Motor America;

Mission Hills-H, Inc. dba Keyes Hyundai of Mission Hills; and Does 1-10

Case No. 23CHCV03746

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 21, 2026

MOTION TO COMPEL

DEPOSITION

Los Angeles Superior

Court Case No. 23CHCV03746

Motion filed: 2/11/26

MOVING PARTY: Defendants Hyundai Motor America and

Missions Hills-H, Inc. dba Keyes Hyundai of Mission Hills

RESPONDING PARTY: Plaintiff Jorge Molina

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Plaintiff to appear at deposition and produce non-objectionable documents requested by Defendants.

TENTATIVE RULING: The Motion is GRANTED IN PART.

BACKGROUND

This action arises from alleged defects in a 2021 Hyundai Santa Fe (the "Subject Vehicle") purchased by Plaintiff Jorge Molina ("Plaintiff") and the subsequent failure of Defendants Hyundai Motor America ("HMA"), Mission Hills-H, Inc. dba Keyes Hyundai of Mission Hills ("Keyes") (collectively, "Defendants") to conform the Subject Vehicle to warranty. On December 8, 2023, Plaintiff filed the Complaint against Defendants and Does 1 through 10, alleging the following causes of action: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied warranty; (3) violation of Song-Beverly Act section 1793.2; and (4) negligent repair.

On January 10, 2024, HMA and Keyes filed their respective Answers.

On February 11, 2026, Defendants filed the instant motion to compel Plaintiff's deposition (the "Motion").

On July 8, 2026, Plaintiff filed an Opposition.

On July 14, 2026, Defendants filed a Reply.

ANALYSIS

"Any party may obtain discovery ... by taking ... the oral deposition of any person,

including any party to the action.” (Code Civ. Proc., § 2025.010.)

To

compel the deposition of a party to an action or its officer, director, managing agent, or employee, the deposing party need only serve a notice in compliance with Code of Civil Procedure section 2025.240. (Code Civ. Proc., § 2025.280, subd. (a).) Nothing further is needed. If, after service of the deposition notice, the deponent fails to appear “without having served a valid objection under Section 2025.410,” the deposing party may move for an order compelling the deponent’s attendance and testimony. (Code Civ. Proc., § 2025.450, subd. (a).)

A.

Meet and Confer

Where

a deponent has failed to attend the deposition, a motion to compel must be accompanied by a declaration stating that the petitioner has contacted the deponent to inquire about non-appearance. (Code Civ. Proc., § 2025.450, subd. (b).) “Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue,” including by rescheduling. (Leko v. Cornerstone Bldg. Inspection Serv. (2001) 86 Cal. App. 4th 1109, 1124.)

Here, Defendants’ counsel initially noticed a deposition scheduled for December 4, 2024. (Bajaj Decl., ¶ 3, Exh. A.) Plaintiff’s counsel objected to the deposition notice on November 26, 2024 because it was unilaterally noticed, and asserted objections to each of Defendants’ 25 requests for document production. (Id., ¶ 4, Exh. B.) Defendants’ counsel then emailed Plaintiff’s counsel on December 10, 2024 and again on January 9, 2025 requesting availability. (Id., ¶¶ 5-6.) Plaintiff’s counsel did not respond with available dates. (Id., ¶¶ 6-7.) Plaintiff’s counsel further failed to respond to four subsequent scheduling communications, sent by Defendant’s counsel on January 13, 2025, March 19, 2025, January 15, 2026, and January 20, 2026. (Id., ¶¶ 8-12.) As of the date the Motion was filed, Plaintiff had not provided any available deposition dates. (Id., ¶ 13.)

The Court finds Defendants’ effort to resolve the

scheduling issues to be satisfactory.

B.

Motion to Compel Deposition

Defendants contend that Plaintiff's objection based on unavailability did not excuse him from attending the deposition noticed for December 4, 2024. (Mot., at p. 4.) The Court agrees. Defendants' deposition notice states that the deposition is to take place via video conference at 10:00 a.m. on December 4, 2024, requests that Plaintiff produce 25 categories of documents, and indicates that it was served on Plaintiff's counsel on November 12, 2024. (Bajaj Decl., Exh. A.) The notice complies with Code of Civil Procedure section 2025.240 and was sufficient to compel Plaintiff's attendance and testimony.

Plaintiff does not dispute that the deposition was properly noticed. Instead, Plaintiff argues that the Motion is moot because Plaintiff has provided Defendants' counsel with August 18, 2026 as an agreeable date for deposition and "remains willing and able to appear" on that date or to meet and confer in good faith to schedule an alternative date. (Opp'n, at p. 2.)

In Reply, Defendants contend that an expression of willingness to appear is far short of a guarantee of appearance, and claim that they have no record of the date proposed by Plaintiff. (Reply, at p. 2.) Defendants note that Plaintiff's counsel's email proposing August 18, 2026 for Plaintiff's deposition shows that it was sent to individuals at the Theta Firm, which does not represent any party in this matter. (Ibid.; see Schmitt Decl., Exh. A.)

The Court agrees with Defendants that Plaintiff's current representation of willingness to appear does not alleviate the earlier failure to respond to requests regarding scheduling and does not render the Motion moot.

On the facts presented, the Court finds that Plaintiff failed to appear for a properly noticed deposition.

The Court therefore GRANTS the Motion to compel Plaintiff's appearance at deposition.

C.

Requests for

Production of Documents at Deposition

Defendants also request an order compelling Plaintiff to produce, at deposition, the documents requested in their deposition notice. The deposition notice includes 25 requests for production of documents. (Bajaj Decl., Exh. A.) Plaintiff objects to each request as being overbroad, vague and ambiguous, and seeking information protected by attorney-client privilege and work product protection. (Id., Exh. B.)

The Motion, however, provides insufficient basis for the Court to adjudicate any dispute over document production.

A motion concerning the content of discovery responses, including a motion to compel the production of documents at deposition, must be accompanied by a separate statement that includes the factual and legal reasons for compelling production as to each category of documents requested. (Cal. Rules of Court, rule 3.1345, subds. (a), (c).) Further, a motion to compel a deponent to produce documents at deposition must "set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (b).)

Here, the Motion is not accompanied by a separate statement, and Defendants' general assertion that the responses to the production requests are not code-compliant does not constitute a fact-specific showing of good cause.

The request for an order compelling production of the 25 categories of documents requested is accordingly DENIED, without prejudice to Defendants bringing a further motion in proper form should disputes over document production remain.

CONCLUSION

Defendants Hyundai Motor America and Missions Hills-H, Inc. dba Keyes Hyundai of Mission Hills' motion to compel Plaintiff's deposition is GRANTED IN PART. Plaintiff Jorge Molina is ordered to appear for deposition on the first mutually agreeable date between the parties, deposition

to take place within 30 days.

Moving party to give notice.